

"Civility allows for zealous representation, reduces clients' costs, better advances clients' interests, reduces stress, increases professional satisfaction, and promotes effective conflict resolution. These guidelines foster the civility and professionalism that are hallmarks of the best traditions of the legal profession."

OCBA Civility Guidelines

"The American legal profession exists to help people resolve disputes cheaply, swiftly, fairly, and justly. Incivility between counsel is sand in the gears."
(*Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal.App.5th 734, 747.)

TENTATIVE RULINGS
Judge Kimberly Knill, Dept. C31

- The court encourages remote appearances to save time, reduce costs, and increase public safety. Go to [Check-In Results - Orange County Superior Court](#) and click the blue box, "Click here to appear/check-in for Civil Small Claims/Limited/Unlimited/Complex remote proceedings." Navigate to Department C31 Judge Kimberly Knill.
- All hearings are open to the public.
- If you desire a transcript of the proceedings, you must provide your court reporter (unless you have a fee waiver and request a court reporter in advance).
- Call the other side. If everyone submits to the tentative ruling, call the clerk at 657-622-5231. Otherwise, the court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

No filming, broadcasting, photography, or electronic recording of the video session is permitted pursuant to California Rules of Court, rule 1.150, and Orange County Superior Court rule 180.

HEARING DATE: Friday, 8/7/2026 10:00 AM

#	Case Name	Tentative
1	Schafer vs. FPG Labs, LLC 30-2025-01487113-CU-PO-CJC	Motion to Sever Moving Defendants from Action Defendants FPG Labs, LLC d/b/a Ovation Fertility, US Genetic Lab d/b/a Ovation Genetics' (collectively the "Labs Defendants") motion to sever moving defendants from action is DENIED. Section 1048 no longer authorizes severance. (<i>Morehart v. County of Santa Barbara</i> (1994) 7 Cal.4th 725, 737, fn. 3.) The court can no longer sever a cause of action, issue, or party into a separate lawsuit and can only order a separate trial. (<i>Ibid.</i>) There is insufficient grounds to order a separate trial under Code of Civil Procedure sections 379, 379.5, and/or

		1048 and the court declines to exercise its discretion to make such an order. Plaintiff's claims are "are based on the defendants: (1) knowledge and combined promotion of PGT-A; (2) handling of the same genetic material; (3) combined delay in informing the Plaintiff of the laboratory error" (Opp. p. 4.; see FAC ¶¶ 9-54.) Thus, many witnesses of the underlying facts and for Plaintiff's damages will overlap between all Defendants and would have to appear at both trials. Moreover, there is insufficient prejudice regarding the Lab Defendants' claim of the jury conflating responsibilities or obligations at trial. The Labs Defendants will be able to participate in trial and object to this tactic and be able to present their own evidence of the limitations of their responsibilities and duties to Plaintiff. The claims arise from the handling and testing of four embryos and the recommendations based on those tests results, and trying the claims in a single trial will promote judicial economy. Clerk to give notice.
2	Thomas vs. City of Rancho Santa Margarita 30-2024- 01396694-CU- PO-CJC	Motion for Determination of Good Faith Settlement Defendant Andre Landscape Service, Inc.'s motion for determination of good faith settlement is DENIED. Defendant Andre Landscape Service, Inc. ("Movant") moves for an order determining its \$100,000 settlement with Plaintiff is in good faith. Defendants Rancho Santa Margarita Landscape and Recreation Corporation ("SAMLARC") and Mission Landscape Companies, Inc. ("Mission") (collectively "Non-Settling Defendants") separately oppose the motion. When determining whether a settlement is made in good faith, the court must determine whether "the amount of the settlement is within the reasonable range of the settling tortfeasor's proportional share of comparative liability for the plaintiff's injuries." (<i>Tech-Bilt, Inc. v. Woodward-Clyde & Assocs.</i> (1984) 38 Cal.3d 488, 499 (<i>Tech-Bilt</i>)). In making such a determination, the court considers the following factors: (1) a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability; (2) the amount paid in settlement; (3) the allocation of settlement proceeds among plaintiffs; (4) the recognition that a settlor should pay less in settlement than he would if he were found liable after a trial; (5) the financial conditions and insurance policy limits of settling defendants; and (6) the existence